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JUDGMENT SHEET
IN THE LAHORE HIGH COURT
BAHAWALPUR BENCH, BAHAWALPUR.
JUDICIAL DEPARTMENT

Writ Petition. No.5078 of 2022

Rao Fakhar Nawaz **VS.** Superintendent, New Central Jail
Bahawalpur and another.

J U D G M E N T

Date of hearing	16.08.2022
Petitioner represented by:	Mr. Muhammad Umair Mohsin, Advocate.
State by:	Mr. Naveed Khalil Chaudhry, Additional Advocate General with Shafique Sipra, Assistant Superintendent, Central Jail, Bahawalpur.

SADIQ MAHMUD KHURRAM, J.- Through this petition filed under Article 199 of the Constitution of the Islamic Republic of Pakistan, 1973, the following prayer has been made:-

“Under the above-mentioned circumstances and facts of the case, it is, therefore humbly prayed that by accepting instant writ petition, a direction may graciously be issued to Respondent No.1 to calculate the period of Petitioner from his arrest in case F.I.R. No. 798/2021 dated 08.11.2021 U/S 9-C of CNSA, 1997 registered at Police Station Baghdad-ul-Jadid District Bahawalpur as the Petitioner remained under custody in above said F.I.R. alongwith F.I.R. No. 956/2021 dated 13.12.2021 U/S 9-C of CNSA, 1997 registered Police Station Baghdad-ul-Jadid District Bahawalpur .

It is further prayed that the Respondent No. 1 may also be directed to calculate the period of Petitioner in

accordance with law and release the Petitioner from his custody, he served out the sentences passed by the learned trial court dated 27.04-2022 in above said criminal cases/F.I.R.s.”

2. The brief facts of the case leading up to the filing of this petition are that the petitioner namely Rao Fakhar Nawaz son of Muhammad Nawaz was arrested in case F.I.R. No.798 of 2021, dated 08.11.2021 registered in respect of an offence under section 9(c) of the Control of Narcotic Substances Act, 1997 at the Police Station Baghdad-ul-Jadid District Bahawalpur and admitted to the Central Jail Bahawalpur on **10.11.2021**. Subsequently, the petitioner was admitted to post arrest bail by the learned trial court and released from the Central Jail Bahawalpur on **26.11.2021**. Thereafter the petitioner was again arrested in case F.I.R. No.956 of 2021, dated 13.12.2021 registered in respect of an offence under section 9(c) of the Control of Narcotic Substances Act, 1997 at the Police Station Baghdad-ul-Jadid District Bahawalpur and admitted to the Central Jail Bahawalpur on **15.12.2021** and remains there. The trial of the case F.I.R. No.798 of 2021, dated 08.11.2021 registered in respect of an offence under section 9(c) of the Control of Narcotic Substances Act, 1997 at the Police Station Baghdad-ul-Jadid District Bahawalpur commenced and at the conclusion of the trial ,the learned trial court vide judgment dated 27.04.2022, convicted the petitioner under section 9(c) of the Control of Narcotic Substances Act, 1997 and sentenced him to Rigorous Imprisonment for seven months under section 9(c) of Control of Narcotic Substances Act, 1997 and directed him to pay fine of Rs.40,000/- and in default of payment thereof to further undergo Simple Imprisonment for twenty days. The

benefit available under section 382-B of Cr. P.C. was also extended to the petitioner. Vide order dated 12.05.202, all the sentences awarded to the petitioner were ordered to run concurrently by the learned trial court. The trial of the case F.I.R. No.956 of 2021, dated 13.12.2021 registered in respect of an offence under section 9(c) of the Control of Narcotic Substances Act, 1997 at the Police Station Baghdad-ul-Jadid District Bahawalpur also commenced and at the conclusion of the trial, the learned trial court, vide judgment dated 27.04.2022, convicted the petitioner under section under section 9(c) of the Control of Narcotic Substances Act, 1997 and sentenced him to Rigorous Imprisonment for seven months under section 9(c) of Control of Narcotic Substances Act, 1997 and directed him to pay fine of Rs.40,000/- and in default of payment thereof to further undergo Simple Imprisonment for twenty days. The benefit available under section 382-B of Cr.P.C. was also extended to the petitioner. All the sentences awarded to the petitioner were ordered to run concurrently by the learned trial court. As the petitioner had been released from the jail on 26.11.2021 after being admitted to post arrest bail in F.I.R. No.798 of 2021, dated 08.11.2021 registered in respect of an offence under section 9(c) of the Control of Narcotic Substances Act, 1997 at the Police Station Baghdad-ul-Jadid District Bahawalpur, therefore, the jail authorities refused to count the period spent by the petitioner in jail after **15.12.2021**, the date when he was admitted to the Central Jail Bahawalpur in case F.I.R. No.956 of 2021, dated 13.12.2021, as the period of sentence served of the sentence awarded to the petitioner in case F.I.R. No.798 of 2021, dated 08.11.2021 registered in respect of an offence under section 9(c) of the

Control of Narcotic Substances Act, 1997 at the Police Station Baghdad-ul-Jadid District Bahawalpur, hence the petition.

3. The learned counsel for the petitioner *inter-alia* contended that the refusal of the jail authorities to count the period spent by the petitioner in jail after **15.12.2021**, the date when he was admitted to the Central Jail Bahawalpur in case F.I.R. No.956 of 2021, dated 13.12.2021, as the period of sentence served of the sentence awarded to the petitioner in case F.I.R. No.798 of 2021, dated 08.11.2021 registered in respect of an offence under section 9(c) of the Control of Narcotic Substances Act, 1997 at the Police Station Baghdad-ul-Jadid District Bahawalpur, was unwarranted.

4. The learned Additional Advocate General has submitted that according to Rule 35 of Pakistan Prisons Rules, 1978, the period spent by the petitioner after being released from jail in case F.I.R. No.956 of 2021, dated 13.12.2021 registered in respect of an offence under section 9(c) of the Control of Narcotic Substances Act, 1997 at the Police Station Baghdad-ul-Jadid District Bahawalpur, could not be considered as sentence served out of the sentence awarded to the petitioner in case F.I.R. No.798 of 2021, dated 08.11.2021 registered in respect of an offence under section 9(c) of the Control of Narcotic Substances Act, 1997 at the Police Station Baghdad-ul-Jadid District Bahawalpur .

5. I have heard the learned counsel for the petitioner, the learned Additional Advocate General and perused the record of the case and the report/parawise comments submitted by the Superintendent, Central Jail, Bahawalpur .

6. The record evinces that the petitioner namely Rao Fakhar Nawaz son of Muhammad Nawaz was arrested in case F.I.R. No.798 of 2021, dated 08.11.2021 registered in respect of an offence under section 9(c) of the Control of Narcotic Substances Act, 1997 at the Police Station Baghdad-ul-Jadid District Bahawalpur and admitted to the Central Jail Bahawalpur on **10.11.2021**. Subsequently, the petitioner was admitted to post arrest bail by the learned trial court and released from the Central Jail Bahawalpur on **26.11.2021**. Thereafter the petitioner was again arrested in case F.I.R. No.956 of 2021, dated 13.12.2021 registered in respect of an offence under section 9(c) of the Control of Narcotic Substances Act, 1997 at the Police Station Baghdad-ul-Jadid District Bahawalpur and admitted to the Central Jail Bahawalpur on **15.12.2021** and remains there. The trial of the case F.I.R. No.798 of 2021, dated 08.11.2021 registered in respect of an offence under section 9(c) of the Control of Narcotic Substances Act, 1997 at the Police Station Baghdad-ul-Jadid ,District Bahawalpur commenced and at the conclusion of the trial ,the learned trial court vide judgment dated 27.04.2022, convicted the petitioner under section 9(c) of the Control of Narcotic Substances Act, 1997 and sentenced him to Rigorous Imprisonment for seven months under section 9(c) of Control of Narcotic Substances Act, 1997 and directed him to pay fine of Rs.40,000/- and in default of payment thereof to further undergo Simple Imprisonment for twenty days. The benefit available under section 382-B of Cr. P.C. was also extended to the petitioner. Vide order dated 12.05.2022, all the sentences awarded to the petitioner were ordered to run concurrently by the learned trial court. The trial of the

case F.I.R. No.956 of 2021, dated 13.12.2021 registered in respect of an offence under section 9(c) of the Control of Narcotic Substances Act, 1997 at the Police Station Baghdad-ul-Jadid District Bahawalpur also commenced and at the conclusion of the trial, the learned trial court, vide judgment dated 27.04.2022, convicted the petitioner under section under section 9(c) of the Control of Narcotic Substances Act, 1997 and sentenced him to Rigorous Imprisonment for seven months under section 9(c) of Control of Narcotic Substances Act, 1997 and directed him to pay fine of Rs.40,000/- and in default of payment thereof to further undergo Simple Imprisonment for twenty days. The benefit available under section 382-B of Cr.P.C. was also extended to the petitioner. All the sentences awarded to the petitioner were ordered to run concurrently by the learned trial court. As the petitioner had been released from the jail on 26.11.2021 after being admitted to post arrest bail in F.I.R. No.798 of 2021, dated 08.11.2021 registered in respect of an offence under section 9(c) of the Control of Narcotic Substances Act, 1997 at the Police Station Baghdad-ul-Jadid District Bahawalpur, therefore, the jail authorities refused to count the period spent by the petitioner in jail after **15.12.2021**, the date when he was admitted to the Central Jail Bahawalpur in case F.I.R. No.956 of 2021, dated 13.12.2021, as the period of sentence served of the sentence awarded to the petitioner in case F.I.R. No.798 of 2021, dated 08.11.2021 registered in respect of an offence under section 9(c) of the Control of Narcotic Substances Act, 1997 at the Police Station Baghdad-ul-Jadid District Bahawalpur. Though the learned Additional Advocate General has submitted that according to Rule 35 of Pakistan Prisons Rules,

1978, the period spent by the petitioner after being released from jail in case F.I.R. No.956 of 2021, dated 13.12.2021 registered in respect of an offence under section 9(c) of the Control of Narcotic Substances Act, 1997 at the Police Station Baghdad-ul-Jadid, District Bahawalpur, could not be considered as sentence served out of the sentence awarded to the petitioner in case F.I.R. No.798 of 2021, dated 08.11.2021 registered in respect of an offence under section 9(c) of the Control of Narcotic Substances Act, 1997 at the Police Station Baghdad-ul-Jadid, District Bahawalpur, but the said argument of the learned Additional Advocate General is untenable. Before moving further, it would be advantageous to reproduce the relevant Rule 35 of the Pakistan Prisons Rules, 1978. Rule 35 of the Pakistan Prisons Rules, 1978 reads as under:-

“Periods to be included for sentence.

Rule35. If any prisoner is released on bail pending appeal or revision or his sentence of imprisonment is suspended for some time, for any reason, and such a prisoner is subsequently again committed to prison, the period during which the prisoner was out of prison or on bail or the sentence was suspended shall not count as sentence served, unless the warrant or the order of recommitment otherwise directs:

Provided that—

(a) a prisoner who is released on bail on the day on which the sentence of imprisonment is passed, shall not be deemed to have undergone any part of his sentence until he is again placed in confinement; and that

(b) this rule shall not be deemed to apply to persons undergoing imprisonment under the provision of section 123 of the Code of Criminal Procedure.”

A bare reading of the Rule 35 of the Pakistan Prisons Rules, 1978 makes it clear that the period which is not to be counted as sentence served is the period which an accused **spends out of prison and is not again committed to prison.** In the instant case, no doubt that the petitioner was admitted to post-arrest bail by the learned trial court and

released from the Central Jail Bahawalpur on **26.11.2021** in case F.I.R. No.798 of 2021, dated 08.11.2021 registered in respect of an offence under section 9(c) of the Control of Narcotic Substances Act, 1997 at the Police Station Baghdad-ul-Jadid, District Bahawalpur, however, it is also a fact that the petitioner was again arrested in case F.I.R. No.956 of 2021, dated 13.12.2021 registered in respect of an offence under section 9(c) of the Control of Narcotic Substances Act, 1997 at the Police Station Baghdad-ul-Jadid, District Bahawalpur and again **committed to the Central Jail Bahawalpur on 15.12.2021** and remains there. It is also a fact that during the trial of case F. I.R. No.798 of 2021, dated 08.11.2021 registered in respect of an offence under section 9(c) of the Control of Narcotic Substances Act, 1997 at the Police Station Baghdad-ul-Jadid, District Bahawalpur, the learned trial court marked the attendance of the petitioner **as in custody** and not **as on bail**. It is also a fact that the benefit available under section 382-B of the Code of Criminal Procedure, 1898 was also extended to the petitioner by the learned trial court in both cases. Section 382 of Code of Criminal Procedure, 1898 provides that the court shall take into consideration the period, if any, during which such accused was **detained in custody for such offence** and reads as under :-

“382B. Period of detention to be considered while awarding sentence of imprisonment. Where a Court decides to pass a sentence of imprisonment on an accused for an offence, it shall take into consideration the period, if any, during which such accused was detained in custody for such offence.”

According to the admitted facts, the petitioner remains detained in custody since **15.12.2021**, the date when he was admitted to the Central Jail Bahawalpur in case F.I.R. No.956 of 2021, dated

13.12.2021 registered in respect of an offence under section 9(c) of the Control of Narcotic Substances Act, 1997 at the Police Station Baghdad-ul-Jadid, District Bahawalpur, hence the said period is to be considered as a period of sentence served. Then it is also an admitted fact that the learned trial court directed that all the sentences awarded to the petitioner, in any case, **shall run concurrently**. When the learned trial court continued to mark the attendance of the petitioner **as in custody** and not **as on bail** in case F. I.R. No.798 of 2021, dated 08.11.2021 registered in respect of an offence under section 9(c) of the Control of Narcotic Substances Act, 1997 at the Police Station Baghdad-ul-Jadid, District Bahawalpur and when the learned trial court extended the benefit available under section 382-B of Cr. P.C. to the petitioner in both the cases and when the learned trial court directed that all the sentences awarded to the petitioner, in any case, shall run concurrently, then the period spent by the petitioner in prison after **15.12.2021**, the date when he was admitted to the Central Jail Bahawalpur in case F.I.R. No.956 of 2021, dated 13.12.2021, has to be considered as sentence served of the sentence awarded to the petitioner in case F. I.R. No.798 of 2021, dated 08.11.2021 registered in respect of an offence under section 9(c) of the Control of Narcotic Substances Act, 1997 at the Police Station Baghdad-ul-Jadid, District Bahawalpur. *Had the benefit available under section 382-B of Cr. P.C. had not been extended to the petitioner in both the cases and had the learned trial court not directed that all the sentences awarded to the petitioner, in any case, shall run concurrently, then the situation would have been altogether different.* While interpreting any rule, we have to

adopt a plain reading interpretation, keeping in view that the liberty of a convict is concerned. The august Supreme Court of Pakistan in the case of “Government Of The Punjab through Secretary, Schools Education Department, Lahore and others Versus Abdur Rehman and others” (2022 S C M R 25) has held as under :-

“12. When the words are clear nothing remains to be seen and if the words are ambiguous or uncertain then other aids move in. While applying the rule of plain meaning, the hardship or inconvenience if any cannot become the foundation to modify or alter the meaning. The ‘plain meaning rule’ verbalizes the interpretation using the ordinary meaning of the language and the starting line is the language itself and if the words are not statutorily defined, the ordinary meanings may be derived from the dictionary.”

The august Supreme Court of Pakistan in the case of “Government Of Khyber Pakhtunkhwa through Secretary Public Health Engineering, Peshawar and others Versus Abdul Manan and others” (2022 P L C (C.S.) 23) has enunciated the following principle of law:-

“When the intent of the legislature is manifestly clear from the wording of the statute, the rules of interpretation require that such law be interpreted as it is by assigning the ordinary English language and usage to the words used, unless it causes grave injustice which may be irremediable or leads to absurd situations which could not have been intended by the legislature. Only then, the Court may see the mischief which the legislature sought to remedy and interpret the law in a manner that meets the intent of the legislature.”

The august Supreme Court of Pakistan in the case of “Baz Muhammad Kakar and others Versus Federation Of Pakistan through Ministry of Law and Justice and others” (P L D 2012 Supreme Court 923) has observed as under:-

“At the same time, the language of the statute must not be strained to make it apply to a case which does not legitimately, on its terms, apply by invoking consideration of the supposed intention of the legislature. The true meaning of any passage, it is said, is to be found not merely in the words of that passage; but in comparing it with other parts of the law, ascertaining also what were the circumstances with reference to which the words were used, and what was the object appearing from those circumstances which the legislature had in view. The same, it would seem, applies to a by-law.”

The literal rule of interpretation of the Constitution and statutes, also known as the golden rule of interpretation, is that the words and phrases used therein should be read keeping in view their plain meaning. Reference in this behalf may be made to the cases of “Syed Mukhtar Hussain Shah v. Mst. Saba Imtiaz” (PLD 2011 SC 260), “Mumtaz Hussain v. Dr. Nasir Khan” (2010 SCMR 1254), “Kamaluddin Qureshi v. Ali International Co”. (PLD 2009 SC 367), “Pakistan through Secretary Finance v. M/s Lucky Cement” (2007 SCMR 1367), “Federation of Pakistan through Secretary Ministry of Finance v. Haji Muhammad Sadiq” (PLD 2007 SC 67), “Mushtaq Ahmed v. Secretary, Ministry of Defence” (PLD 2007 SC 405), “Sved Masroor Shah v. State” (PLD 2005 SC 173), “Federation of Pakistan v. AmarTextile Mills (Pvt.) Ltd.” (2002 SCMR 510), “World Trade Corporation v. Excise and Sales Tax .4 Appellate Tribunal” (1999 SCMR 632) and “State Cement Corporation of Pakistan Ltd. v. Collector of Customs, Karachi” (1998 SCMR 2207). The plain reading of the Rule 35 of the Pakistan Prisons Rules, 1978 provides for no other interpretation but as construed above.

7. For the above identified reasons, the instant petition is

allowed and a direction is issued to the Superintendent Central Jail Bahawalpur that the period spent by the petitioner in prison after **15.12.2021**, the date when he was admitted to the Central Jail Bahawalpur in case F.I.R. No.956 of 2021, dated 13.12.2021, shall be considered as sentence served out of the sentence awarded to the petitioner in case F.I.R. No.798 of 2021, dated 08.11.2021 registered in respect of an offence under section 9(c) of the Control of Narcotic Substances Act, 1997 at the Police Station Baghdad-ul-Jadid District Bahawalpur.

(SADIQ MAHMUD KHURRAM)
JUDGE

APPROVED FOR REPORTING

JUDGE

Raheel